IN THE INDUSTRIAL COURT OF MALAYSIA

[CASE NO: 17/4-1088 / 22]

WONG CHIEW LEE

AND

WAIKIKI MANAGEMENT CORPORATION

AWARD NO.: 1900 / 2025

Chairman	:	**YANG ARIF DATUK INDRA BIN HAJI AYUB**
Venue	:	Industrial Court of Malaysia Sabah
Date of Reference	:	23.06.2022
Date(s) of Mention	:	29.07.2022, 04.10.2022, 21.10.2022, 19.12.2022, 02.02.2023, 04.07.2023, 27.11.2023, 17.01.2024, 23.02.2024, 08.03.2024, 16.04.2024, 05.06.2024, 25.07.2024, 04.11.2024
Date(s) of Hearing	:	07.08.2024, 10.09.2024, 26.09.2024, 19.12.2024, 20.02.2025, 21.02.2025, 24.03.2025, 25.03.2025, 08.05.2025
Counsel for the Claimant:		Chung Kai Lun / Lee Sin Yang Messrs. Chung & Lee Advocates Advocates & Solicitors Kota Kinabalu Sabah
Counsel for the Company:		Adrian Chong Ken Yung Sherlene Cheah Wen Mann Charlaine Chu Wan Yu Messrs. Ng & Co Advocates & Solicitors Kota Kinabalu Sabah

AWARD

A. REFERENCE

[1] This is a reference by the Director General of Industrial Relations Malaysia under Section 20(3) of the Industrial Relations Act 1967 ("the IRA 1967") arising out of the dismissal of **WONG CHIEW LEE** (hereinafter referred to as "the Claimant") by **WAIKIKI MANAGEMENT CORPORATION** (herein referred to as "the Company") .

B. PREFACE

[2] This reference required this Court to hear and determine the Claimant's complaint of dismissal by the Company on 24.02.2022

[3] The Company, is the registered Management Corporation pursuant to Land (Subsidiary Title) Enactment 1972 and Land Ordinance Sabah (Cap.68) under Certificate No. 0059 and administered by a Council comprising volunteer members elected annually by the parcel owners of Waikiki Condominium.

[4] The Claimant commenced her employment as a General Manager of the Company effective on 19.09.2020 pursuant to a Letter of Appointment dated 19.09.2020. At the time of her appointment, the Company was under the management of the 2019/2020 Council.

[5] The Claimant served a three-month probationary period and was subsequently confirmed in her position by a Letter of Confirmation dated 11.02.2021, issued by one Cathy Pua , the then Chairlady of the 2019/2020 Council,.

[6] At the Annual General Meeting on 27.03.2021, a new 2020/2021 Council was elected comprising: Chairlady: Stephanie Yen , Deputy Chairman: Andrew Liaw , Secretary: Margaret Yong Kui Fei , Treasurer: Lee Nyuk Sin and Council Members: Matthew Yen Muk Yew, Athena Georgene Ug Ang Lai Li (CoW1) and Bogene Ang.

[7] The Claimant continued to serve as General Manager until 24.02.2022, when she was handed a Termination Letter signed by CoW1, terminating her employment with immediate effect for alleged “serious misconduct and negligence” .

[8] The contents of the Termination Letter dated 24.02.2022 are as follows :

Dear Madam Wong Chiew Lee Julie,

TERMINATION OF WONG CHIEW LEE JULIE, GENERAL MANAGER OF WAKIKI MANAGEMENT CORPORATION

We regret to inform you that by a Resolution dated 7th February 2022, the Wakiki Management Corporation (WMC) has decided to terminate your services as the General Manager of the WMC with immediate effect, i.e. as of the date of service of this letter on you, on grounds of serious misconduct and negligence in the execution of your duties.

You shall forthwith deliver the Login credentials (username & password) of the Host Account (Domain and Email server account wmckk.com), all WMC Gmail addresses and passwords, all hard copies of documents, digital information, files, keys, and

properties or assets, etc belonging to the WMC and which are in your possession and custody to Council Members Mdm Margaret Yong Kui Fei or Mdm Lee Nyuk Sin as stated in the attached checklist.

You shall refrain from gaining access to the WMC office and howsoever deal with the affairs of WMC hereafter. The WMC reserves the rights to claim against you.

Yours faithfully,

For and on behalf of

WAKIKI MANAGEMENT CORPORATION

ATHENA GEORGENE UY ANG LAI LI

Council Member

[9] The Claimant submits that she was unlawfully terminated and that her dismissal by the Company was without just cause or excuse and/or an unfair labour practice. The Claimant states that the Termination Letter did not particularise or provide details of the alleged misconduct or negligence. Prior to her dismissal, the Claimant had received no notice, warning, or indication of dissatisfaction with her performance, nor had she been issued a show cause letter or subjected to any domestic inquiry. She was also not paid her salary for February 2022.

[10] The Company however states that the termination of the Claimant employment was lawful with just cause or excuse. The Company prays for the dismissal of the Claimant to be upheld and the Claimant's claim to be dismissed.

C. DUTY OF THE INDUSTRIAL COURT

[11] The Federal Court **in *Milan Auto Sdn. Bhd. v. Wong Seh Yen*** *[1995] 4 CLJ, 449 at 455* held that the function of the Industrial Court in dismissal cases on a reference under section 20 is two-fold. Firstly, to determine whether the misconduct complained of by the employer has been established, and secondly whether the proven misconduct constitutes just cause or excuse for the dismissal.

[12] In ***K A Sanduran Nehru Ratnam v I-Berhad*** *[2007] 1 CLJ 347*, the Federal Court outlined the function of the Industrial Court :

> *"the main and only function of the Industrial Court is dealing with reference under s20 of the IRA 1967 is to determine whether the misconduct or irregularities complained of by the management as to the grounds of dismissal were in fact committed by the workmen. If so, whether such grounds constitute just cause or excuse for the dismissal"*

[13] First and foremost, it is the duty of the Industrial Court to determine whether the termination or dismissal is with or without just cause or excuse. The Federal Court in the case of ***Goon Kwee Phoy v. J&P Coats (M) Bhd*** [1981] 1 MLRA 415, where His Lordship Raja Azlan Shah, CJM (as he then was) stated at p 430:

> *"Where representations are made and are referred to the Industrial Court for enquiry, it is <u>the duty of that court to determine whether the</u>*

termination or dismissal is with or without just cause or excuse. If the employer chooses to give a reason for the action taken by him the duty of the Industrial Court will be to enquire whether that excuse or reason has or has not been made out. If it finds as a fact that it has not been proved, then the inevitable conclusion must be that the termination or dismissal was without just cause or excuse."

[14] It is also the role of the Industrial Court that it must act according to equity, good conscience and substantial merits of the case without regard to technicalities and legal forms. In ***Nadarajah v Golf Resort (M) Bhd*** *[1992] 1 MLJ 506*, Eusoff Chin J (as he than was) says :

" It is therefore to be observed that in view of the provision of s. 30(5) of the Act , the Industrial Court must act according to equity, good conscience and substantial merits of the case without regard to technicalities and legal forms. Technical rules such as estoppel, limitation, laches, acquiescence, etc … have no place in industrial adjudication and they should not be allowed to be invoked for defeating claims which are just and proper "

D. THE LAW AND BURDEN OF PROOF

[15] Whenever a company had caused the dismissal of the workman, it is incumbent on the part of the company to discharge the burden of proof that the dismissal was with just cause or excuse .

[16] It is trite law that the Company bears the burden to prove that the Claimant had committed the alleged misconduct and the conduct

warrants the Claimant's dismissal. The Company must prove the Claimant guilty and it is not the Claimant who must prove himself not guilty.

[17] The burden of proof in an unfair dismissal claim lies on the employer to prove on a balance of probabilities that the employee is guilty of the allegation or the reason for the dismissal. This principle was expounded in ***Stamford Executive Centre v Dharsini Ganeson*** *[1986] ILR 101* :

> *"In a dismissal case the employer must produce convincing evidence that the workman committed the offence or offences the workman is alleged to have committed for which he has been dismissed. The burden of proof lies on the employer. The employer must prove the workman guilty and it is not the workman who must prove himself not guilty. This is so basic a principle of industrial jurisprudence that no employer is expected to come to this Court in ignorance of it."*

[18] In ***Ireka Construction Bhd. v. Chantiravathan Subramaniam James*** *[1995] 2 ILR 11* it was held that :

> *"It is a basic principle of industrial jurisprudence that in a dismissal case the employer must produce convincing evidence that the workman committed the offence or offences the workman is alleged to have committed for which he has been dismissed. The burden of proof lies on the employer to prove that he has just cause and excuse for taking the decision to impose the disciplinary measure of dismissal upon the employee. The just cause must be, either a misconduct, negligence or poor performance based on the facts of case."*

[19] In ***Telekom Malaysia Kawasan Utara v. Krishnan Kutty Sanguni Nair & Anor*** *[2002] 3* CLJ 314 at the Court Appeal held that the standard of proof for cases heard before the Industrial Court is *"on the balance of probabilities"* :

> *In our view the passage quoted from Administrative Law by H.W.R. Wade & C.F. Forsyth offers the clearest statement on the standard of proof required, that is the civil standard based on the balance of probabilities, which is flexible so that the degree of probability required is proportionate to the nature of gravity of the issue."*

[20] In ***Tyco Engineering And Construction (M) Sdn Bhd v James Francis Trimble*** *[2000] 2 MELR 678*, the Industrial Court outlined the law on the burden of proof as follows:

> *"The burden of proof that the dismissal was with just cause or excuse is on the employer which is on the balance of probabilities to adduce cogent and convincing evidence being the real reason by dismissing the employee. This is the principle of industrial jurisprudence".*

E. ISSUES FOR DETERMINATION

[21] In this case, it is an undisputed fact from the evidence that the Claimant was a workman within the meaning of the IRA 1967 and her employment with the Company was terminated on 24.02.2022.

[22] Based on the case of ***Colgate Palmolive (M) Sdn Bhd v. Yap Kok Foong & Another Appeal*** [2001] 3 CLJ 9, it now remains to be considered whether the termination was with just cause or excuse.

F. THE COMPANY'S CASE

[23] There were three (3) witnesses testified for the Company as follows:

CoW1 : Athena Georgene Uy Ang Lai Li -. CoW1 was a former Chairlady of Company for few months during the 2021/2022 term. Her witness statement was marked as CoWS1 (1-32)

CoW2 : Lee Wah Ban – CoW2 is the resident of Waikiki Condominium. His witness statement was marked as CoWS2 (1-10).

CoW3 : Suzy Julin Cyprianus – CoW3 was initially appointed as the Senior Manager of the Company in December 2021. Subsequently she was redesignated as the General Manager in September 2023. She later resigned on 31.03.2024 from the Company. Her witness statement was marked as CoWS3 (1-9).

[24] The Claimant was appointed as General Manager with the Company with effect from 19.09.2020.

[25] The material facts which justify the Claimant's dismissal on 24.02.2022 by the Company inter alia are as follows:

1 The Claimant's cumulative acts of insubordination and breach of duties as General Manager under her Letter of Appointment constituting serious misconduct;

2 The Claimant demonstrated willful disobedience through:

a. Refusal and/or failure to manage and respond to correspondence addressed to the Company**,**

b. Persistent refusal to and/or defiance in carrying out lawful and reasonable orders from Council Members

c. Use of insolent and impertinent language in responding to Ms Georgene Ang’s inquiries;

d. Refusal to accept service of official correspondence

3 The Claimant breached the express terms of her Letter of Appointment by:

i. Falling to ensure the safety of common areas including the failure to address the 21 fire abatement notices issued 04.05.2021,

ii. Failing to execute directives and orders issued by the Council, Chairman, Vice Chairman, and WMC members,

iii. Exposing the Company to potential liability with the Department of Labour arising from the unauthorised dismissal of a security guard

iv. Breaching House Rules

v. Apart from the aforesaid policies, the Claimant had also breached the General Requirements of The Blue Spirit.

[26] The Company further submits *inter alia* that :

1. Absence of Show Cause and/or Domestic Inquiry is not fatal.

2. The Dismissal of the Claimant was proportionate to the seriousness of the misconduct.

3. The Claimant's evidence should be accorded minimal weight, as she was an evasive witness whose oral testimony was contradicted by contemporaneous documentary evidence.

4. The Dismissal was proportionate in light of the severity of misconduct that undermined trust and confidence essential to employment relationship;

5. In view of the above, the severity of misconduct justified summary dismissal. Alternatively, should the Court determine that compensation is payable, such compensation must be

substantially reduced by reason of the Claimant's contributory conduct; and her post-dismissal earnings .

6. The Company maintains that the dismissal was effected with just cause .

[27] The Company avers that it had produced sufficient evidence establishing that the Claimant had committed misconducts and negligence. The decision of the Company to dismiss the Claimant was done with just cause and excuse.

G. THE CLAIMANT'S CASE

[28] There were two (2) witnesses testified for the Claimant as follows:

CLW1 : Wong Chiew Lee – the Claimant. Her witness statement was marked as CLWS1 (1-25).

CLW2 : Goh Vui Shin – was the former Council Secretary of the Company for the year of 2019/2020 . Her witness Statement was marked as CLWS2 (1-6). CLW2 testified that during her tenure as Secretary , the Council resolved to appoint a General Manager . After interviewing several candidates, the Claimant was officially appointed as General Manager on 19.09.2020.

[29] The Claimant's case can be summarised as follows:

1. The Claimant commenced her employment with the Company on 19.09.2020 as the General Manager of Waikiki Condominium. At the time of her appointment, the Company was under the management of the 2019/2020 Council.

2. The Claimant was issued with a Letter of Appointment dated 19.09.2020, which set out the terms and conditions of her employment. The salient terms of the said Letter of Appointment are, inter alia, as follows:

    a. Clause 3 provides that the Claimant's monthly allowance is RM500.00 for miscellaneous such as fuel and phone cost;

    b. Clause 12 provides that upon confirmation of employment, either party may terminate the employment with three (3) months' written notice or payment of three (3) months' salary in lieu. Additionally, the Company may terminate the employment immediately, without notice or salary in lieu, if the employee is found guilty of misdemeanour, misconduct, negligence, or any breach of the terms and conditions of employment;

    c. Clause 13 provides that the Claimant's working hours will be flexible, allowing for work both in the office or condominium complex as and when necessary. The Claimant's core working hours are between 9.00 a.m. to 12.00 noon. Other working hours schedules will be arranged with the management

accordingly and the Claimant is expected to work at odd hours or on shifts as and when needed;

d. Clause 23.1 provides that the Company retains the right, after a domestic inquiry, to take disciplinary action or suspend the Claimant from work accordingly, including;

i. Dismissing the Claimant without any period of notice for reasons of misconduct, lack of discipline, inconsistency in fulfilling the existing terms and conditions of the service or rules and regulations, expressed or implied;

ii. Imposing any other disciplinary action deemed fair and appropriate by the Company

iii. Suspending the Claimant from duty for a period of no longer than two (2) weeks to conduct a domestic inquiry of disciplinary action.

3. The Claimant served a three-month probationary period and was subsequently confirmed in her position by a Letter of Confirmation dated 11.02.2021, issued by one Cathy Pua , the then Chairlady of the 2019/2020 Council.

4. At the Annual General Meeting on 27.03.2021, a new 2020/2021 Council was elected comprising: Chairlady: Stephanie Yen , Deputy Chairman: Andrew Liaw , Secretary: Yong Kui Fei (also known as

Margaret Yong) , Treasurer: Lee Nyuk Sin and Council Members: Matthew Yen Muk Yew, Athena Georgene Ug Ang Lai Li (CoW1), and Bogene Ang.

5. The Claimant continued to serve as General Manager until 24.02.2022, when she was handed a Termination Letter signed by CoW1, terminating her employment with immediate effect for alleged "serious misconduct and negligence" and directing her to vacate her post and leave the office immediately.

6. The Termination Letter did not particularise or provide details of the alleged misconduct or negligence. Prior to her dismissal, the Claimant had received no notice, warning, or indication of dissatisfaction with her performance, nor had she been issued a show cause letter or subjected to any domestic inquiry. She was also not paid her salary for February 2022.

7. At the time of her dismissal, the Claimant's last drawn salary was RM5,500.00, inclusive of a fixed allowance of RM500.00.

8. The Claimant's claim is that her dismissal was wrongful and effected without just cause or excuse. She maintains that, throughout her tenure as General Manager, she diligently and faithfully discharged her duties in accordance with the terms of her Letter of Appointment dated 19.09.2020 and in the best interests of the Company.

9. The reasons now advanced by the Company in these proceedings were never conveyed to her at the material time and are mere afterthoughts, raised long after her dismissal in an attempt to justify it.

10. The Company also acted in breach of Clause 12 of Letter of Appointment dated 19.09.2020. The Claimant was summarily dismissed without notice, salary in lieu, or payment of her contractual or statutory dues for February 2022.

[30] The Claimant further submits that :

1 The Company's decision to terminate her employment was unjust and unfair .

2 The dismissal was not based on substantiated misconduct but stemmed from an internal conflict within the WMC Council.

3 The Claimant’s Letter of Appointment (Clause 23.1) allegedly makes a domestic inquiry a contractual precondition to disciplinary action. The Company’s failure to issue a show cause letter and conduct a domestic inquiry prior to the Claimant’s termination deprived the Claimant of a meaningful opportunity to be heard. In addition no genuine warning letter was served. The alleged “warning letter” dated 29.12.2021 was not a warning in substance or form, was issued unilaterally without Council approval, and did not invite any explanation from the Claimant.

4 The Company failed to discharge its burden of proof, on a balance of probabilities, in relation to the nine alleged acts of misconduct relied upon to justify the dismissal.

5 An adverse inference should be drawn against the Company for failing to call the majority council member as a witness to support its version of events.

6 The Company has failed to provide any prior warning, either written or verbal, whatsoever to the Claimant regarding any alleged misconduct before her dismissal .

7 The allegations relied upon were only introduced after her dismissal and are merely afterthoughts. The particulars of the alleged misconduct now relied upon by the Company were not made known to the Claimant prior to her dismissal in February 2022 and were never put to her for a response before her employment was terminated.

8 Instead, they emerged in the Company's pleadings piecemeal and in instalments with certain allegations appearing for the first time in its initial Statement in Reply filed on 19.09.2022, others in its Amended Statement in Reply dated 22.09.2022, and the remainder only surfacing in the Re-Amended Statement in Reply dated 21.03.2024.

9 The fact that these allegations were introduced progressively and long after the dismissal demonstrates that they are afterthoughts

rather than the genuine reasons for terminating the Claimant's employment.

10 These procedural breaches are not mere technicalities. They amount to a clear violation of an express contractual term and a denial of natural justice. The subsequent hearing before this Court cannot cure this breach, as the holding of a domestic inquiry was a contractual precondition to dismissal, binding on both parties. The dismissal was therefore procedurally defective and wrongful on this ground alone.

11 The absence of any warning letters, show cause letters, or the conduct of a domestic inquiry is in direct breach of the Company's own contractual obligations and established principles under the law. On this basis alone, the Claimant's case ought to be allowed in its entirety.

12 A substantial part of the Company's pleaded case in its Re-Amended Statement in Reply has been conspicuously abandoned. In the Statement in Reply, the Company had alleged numerous acts of misconduct, including: Removal of the page 9 of the Letter of Appointment, Employment of foreign workers without permits, Issuance of a misleading indemnity letter, Spreading of rumours against CoW1, Forcing staff to lodge false police reports, Failure to record AGM minutes; and Failure to adhere to normal working hours.

13 None of these allegations were pursued in the Company's Submission. They must therefore be treated as abandoned, being mere afterthoughts, either bare assertions devoid of evidential

support or allegations raised belatedly in an attempt to justify the dismissal.

14 Conversely, the Company now seeks to advance eight purported categories of misconduct in its Submission. Upon scrutiny, it is evident that three of these are new and unpleaded, namely:

(i) the alleged use of insolent and impertinent language in email responses;

(ii) the alleged refusal to accept service of the letters dated 27.12.2021 and 29.12.2021; and

(iii) the alleged failure to rectify fire safety defects arising from the Fire Department's notices dated 04.05.2021.

15 Critically, these allegations were never pleaded in the Statement in Reply, nor were they identified by CoW1 in her Witness Statement as grounds for dismissal.

16 In addition to being unpleaded, these new allegations are unsupported by the Company's own evidence. CoW1, the Company's sole managerial witness, did not state in her Witness Statement that the Claimant was dismissed for insolent replies, refusal of service of letters, or failure to rectify fire notices. These matters were simply not in contemplation at the material time of dismissal.

17 The Company's attempt to rely on alleged insolent replies, refusal of service of letters, and failure to rectify fire notices, all of which were never pleaded in the SIR, nor identified by CoW1 as grounds for dismissal, fall outside the proper scope of this Court's consideration under section 20(3) and must be disregarded.

18 This Court is confined to the issues pleaded and to the reasons that were actually operating in the employer's mind at the material time of dismissal. Fresh grounds raised only in submissions are procedurally impermissible, amount to ex post facto justifications, and must be disregarded. Their belated introduction further demonstrates that they are nothing more than afterthoughts.

19 The new and unpleaded allegations raised for the first time at the stage of written submissions are nothing more than afterthoughts and must be rejected.

20 Once the abandoned and unpleaded matters are put aside, the Company's case reduces to five pleaded categories revolving around four factual events as follows:

(i) the Claimant's alleged failure to respond to emails and the complaint letter from Mr. Lee Wah Ban's complaint dated 05.11.2021;

(ii) the events surrounding the appointment of CoW3 (Ms. Suzy Julin Cyprianus) in December 2021;

(iii) the dismissal of the security guard, Fadrick Bin Suki, in August 2021, which purportedly led to a Labour Department fine; and

(iv) the alleged breach of the House Rules concerning keeping or bringing a dog.

These four events, whether viewed individually or cumulatively, fall short of establishing just cause and excuse for the dismissal.

[31] The relief sought by the Claimant are as follows: Compensation in lieu of reinstatement , Payment of back wages , Payment of unpaid February 2022 salary , Payment in lieu of 10 days' unused annual leave, and Such further or other relief as the Court deems fit and just.

H. THE COURT'S FINDINGS

DOMESTIC INQUIRY AND SHOW CAUSE LETTER

[32] In relation to Domestic Inquiry , the general principle of good industrial practice and natural justice require that the employer ought to hold a domestic inquiry prior to dismissing a workman for misconduct. In the present case, a Domestic Inquiry was never conducted prior to the dismissal of the Claimant by the Company.

[33] The Claimant contends that she was not accorded with proper inquiry for her to state her defence as the Company did not issue show cause letter and hold a domestic inquiry in the instant case. The Claimant further states that the Company failed to observe procedural fairness and that failure on the part of the Company to issue show cause letter and to

conduct a Domestic Inquiry is a clear violation of an express contractual term and a denial of natural justice.

[34] The Claimant further states that her Letter of Appointment (Clause 23.1) makes a domestic inquiry a contractual precondition to disciplinary action. The Company's failure to issue a show cause letter and conduct a domestic inquiry prior to the Claimant's termination deprived the Claimant of a meaningful opportunity to be heard.

[35] The Company avers that the absence of Show Cause letter and Domestic Inquiry is not fatal and is curable as the Industrial Court has the jurisdiction to hear the matters *de novo* through a complete hearing of the evidence given by witnesses in the full trial before this Court.

[36] This Court is guided by the principle enunciated in the case of ***Hong Leong Equipment Sdn. Bhd. v. Liew Fook Chuan & Other Appeals*** [1997] 1 CLJ 665; Gopal Sri Ram JCA as he then was said :

> *"The fact that an employer has conducted a domestic inquiry against his workman is, in my judgment, an entirely irrelevant consideration to the issue whether the latter had been dismissed without just cause or excuse. The findings of a domestic inquiry are not binding upon the Industrial Court which rehears the matter afresh. "*

[37] In the case of ***Ang Bee Hoon v. Be-P Pharmacy Sdn Bhd*** *[202314 ILR 204****,*** there was no show cause letter nor domestic inquiry held against the claimant. In dismissing the claimant's claim, the Industrial Court held that :

"The claimant pleaded that there was no show cause letter and no DI held by the company. It is undisputed that there was no show cause letter issued to the claimant and there was no DI held against the claimant with regard to the allegations preferred against her which brought about her dismissal. On the authority of Wong Yuen Hock v. Syarikat Hong Leong Assurance Sdn Bhd & Another Appeal [199513 CLJ 344 which followed the decision of the Supreme Court in Dreamland Corporation (M) Sdn Bhd v. Choong Chin Sooi & Anor [198811 CLJ 1, a defective inquiry or failure to hold a DI is not a fatality but only an irregularity' curable by de novo proceedings before this court….

….. The hearing before this court itself which indeed provides a better and impartial forum for the claimant should be taken as a sufficient opportunity for the claimant to be heard to satisfy natural justice. Indeed, the Minister's reference is a de novo hearing by this court and it therefore rehear the matter afresh.

[38] It is trite law that the hearing before the Industrial Court is a *de novo* hearing and the Industrial Court should proceed to determine on the merits of the case, and the validity or failure to hold a Domestic Inquiry is not fatal as any procedural breach of natural justice could be cured at the hearing before the Industrial Court. This principle was laid down by the Federal Court in ***Wong Yuen Hock v Syarikat Hong Leong Assurance Sdn Bhd & Anor*** *[1995] 2 MLJ 753* :

".. *It was not within the ambit of the reference for the Industrial Court to determine whether Hong Leong ought to be punished for failing to hold a domestic inquiry. The Industrial Court was not competent to declare the dismissal void for failure to comply with the rule of natural justice. …. The very purpose of the inquiry before the Industrial Court was to give both parties to the dispute an opportunity to be heard irrespective of whether there was a need for the employer to hold a contractual or statutory inquiry. We were confident that the Industrial Court as constituted at present was capable of arriving at a fair result by fair means on all matters referred to it. If therefore there had been a procedural breach of natural justice committed by the employer at the initial stage, there was no reason why it could not be cured at the rehearing by the Industrial Court"*

[39] Applying the above principles into the present case, this Court is of the view that the Claimant had all the opportunity to present her case afresh by having the entire matter referred and heard before this Court.

[40] As mentioned earlier, a failure to hold a Domestic Inquiry or the presence of a defective and/or biased inquiry is not a fatality but only an irregularity curable by *de novo* proceedings before the Industrial Court. It was held in ***Dreamland (M) Corp Sdn Bhd v Choong Chin Sooi & Industrial Court of Malaysia*** *[1987] 1 MLRA 357* that :

"…The absence of DI or the presence of a defective inquiry is not fatality but merely an irregularity, it is open to the employer to justify his action before the Industrial Court by leading all relevant evidence before it and by having the entire matter referred before the Court.."

[41] In the circumstances, if therefore there had been a procedural breach of natural justice committed by the Company at the initial stage, including during and after the Domestic Inquiry, there was no reason why it could not be cured at the rehearing by this Court.

WHETHER THERE WAS A MISCONDUCT

[42] In cases where an employee is dismissed on the grounds of misconduct, it is trite in Malaysian industrial jurisprudence that the two-fold test is to be adopted by the Court, as follows:

i. Whether the Claimant had committed the misconduct complained of by the Company; and

ii. If the misconduct is proven, whether the Company had just cause and excuse for the dismissal.

[43] In ***Ong Ho Hoo v Sunway Resort Hotel Sdn Bhd & Anor*** *[2020] 4 ILR 493* , the Industrial Court stated that :

> *"OP Malhotra in his book "**The Law of Industrial Disputes**", **6th Edn** at p. 1116 defined **"misconduct"** as follows:*
>
> *Any conduct on the part of an employee inconsistent with the faithful discharge of his duties towards his employer would be a misconduct. Any breach of the express or implied duties of an employee towards his employer, therefore, ..would constitute an act of misconduct....*(emphasis added)

[44] Based on the evidence adduced before this Court and after having perused and duly considered the relevant documents , the relevant decided cases as well as the submissions by both parties , the conclusion are as follows:

1 In the present case, whether the Claimant had committed the alleged misconducts, this Court will take into consideration the grounds of dismissal of the Claimants as stated in the Letter of Termination.

The Claimant was handed with a Termination Letter dated 24.02.2022, terminating her employment with immediate effect for alleged "serious misconduct and negligence" and directing her to vacate her post as General Manager and leave the office immediately. The contents of the Termination Letter dated 24.02.2022 are inter alia as follows :

> *…TERMINATION OF WONG CHIEW LEE JULIE, GENERAL MANAGER OF WAKIKI MANAGEMENT CORPORATION*
>
> *We regret to inform you that by a Resolution dated 7th February 2022, the Wakiki Management Corporation (WMC) has decided to terminate your services as the General Manager of the WMC with immediate effect, i.e. as of the date of service of this letter on you, on grounds of* ***serious misconduct and negligence*** *in the execution of your duties…..*

2 Based on the Termination Letter dated 24.02.2022 signed by CoW1, the Company decided to terminate the Claimants' employment with

immediate effect "*on grounds of serious misconduct and negligence in the execution of your duties".*

It is obvious that the Termination Letter did not provide details of the alleged misconduct and negligence. The Termination Letter merely stated "serious misconduct and negligence" as the grounds for dismissal. It contained no particulars or examples of the alleged misconduct, nor did it refer to any specific incidents.

3 In the present case, this Court is of the opinion that the Termination Letter lack in clarity. The Company was merely alleged "serious misconduct and negligence" as the grounds for dismissal against the Claimant without even specifying which Code of Conduct was breached by the Claimant, what regulation or rules were allegedly violated or not complied with, what duty was owed and allegedly breached by the Claimant, and what expressed or implied term was breached by the Claimant.

4 This Court is of the opinion that the Claimant is prejudiced because the Claimant would not know which rule or regulations that were purportedly violated or not complied with as per the Company's allegation in the Letter of Termination.

In line with the rule of natural justice, the material particulars of the "serious misconduct and negligence" as the grounds for dismissal must be disclosed to the Claimant. Hence, this Court is convinced

that the dismissal was therefore procedurally unfair for lack in clarity and particulars of the alleged misconduct and negligence.

5 This Court is also of the view that it is insufficient for the Company to merely allege, “serious misconduct and negligence” against the Claimant without even specifying in the Termination Letter of what duties or expressed or implied terms were breached by the Claimant and without stating what section of the policy or regulations was involved and allegedly breached by the Claimant. This Court is convinced that the Termination Letter with the allegation of “serious misconduct and negligence” leveled against the Claimant is unfair and unreasonable.

6 In addition, this Court is of the view that the Company could not go into other reasons not relied on by the Company in terminating the Claimants. In the present case, the allegations of misconduct against the Claimant as per Paragraph 25 of this instant Award were never mentioned and/or included in the Termination Letter dated 24.02.2022.

In the case of ***Mohd Azizi Sohan V. Asian Kitchen (M) Sdn Bhd*** *[2017] 3 MELR 601* it was held that:

> *“(1) On the present facts, the reason given by the company in terminating the claimant’s services was posting of the Facebook Comments. The court could not go into other reasons not relied on by the company in terminating the claimant.”*

In ***Maritime Intelligence Sdn Bhd v Tan Ah Gek*** *[2021] MLJU 2189,* the Federal Court made it clear that in proceedings under section 20(3) of the Industrial Relations Act 1967, the Industrial Court is confined to considering only those reasons which operated in the employer's mind at the time of dismissal. Allegations raised only post-dismissal, whether in pleadings or in submissions, amount to impermissible ex post facto justifications and cannot be considered.

In ***BSC Manufacturing (M) Sdn Bhd v Value Plus Industries Sdn Bhd*** *[2022] MLJU 2825*, it was held inter alia that allegations raised belatedly or only after pleadings have closed amount to mere afterthoughts and cannot constitute a genuine defence.

Applying the above principles into the present case , this Court could not go into other reasons not relied on by the Company in terminating the Claimant.

7 On top of that it is trite law that parties are strictly bound by their pleadings. This principle was applied in the case of ***Tyco Engineering & Construction Sdn Bhd v Jescon Sdn Bhd*** *[2006] 3 CLJ 1* :

> *"It deserves mention here that the Company in its submission, at length suggested retrenchment as a reason for the termination of the Claimant. This Court observes that there was no such plea in the Statement of Reply of the Company. Parties are bound by their pleadings. … Not only is the Company in this*

case bound to prove the facts of a fair dismissal of an employee but it must also not find or give reasons that are not pleaded or made out in the pleadings.

In ***R. Rama Chandran v. The Industrial Court of Malaysia & Anor.*** *(1997) 1 CLJ 147* at page 162 His Lordship Eusoff Chin CJ said :

"It is trite law that a party is bound by its pleadings. The Industrial Court must scrutinise the pleadings and identify the issues, take evidence, hear the parties' arguments and finally pronounce its judgements having strict regard to the issues. It is true that the Industrial Court is not bound by all the technicalities of a civil court (s. 30 of the Industrial Relations Act 1967) but it must follow the same general pattern. The object of pleadings is to determine what are the issues and to narrow the area of conflict. The Industrial Court cannot ignore the pleadings and treat them as mere pedantry or formalism, because if it does so, it may lose sight of the issues, admit evidence irrelevant to the issues and come to the wrong conclusions. The Industrial Court must at all times keep itself alert to the issues and attend to matters it is bound to consider". (Underlining is mine)." [Emphasis added]

Applying the above principles in ***Tyco Engineering*** *[supra]* and ***R. Rama Chandran*** *[supra]* into the present case , this Court concurs with the Claimant on the issues raised at Paragraph 30 (14 to 19) of this instant Award that parties are bound by their pleadings .

This Court is confined to the issues pleaded and to the reasons that were actually operating in the employer's mind at the material time of dismissal. Fresh grounds raised only in submissions are amount to ex post facto justifications, afterthought and must be disregarded

8 On matters stated at Paragraph 30 (12) of this instant Award , this Court has no hesitation to agree that none of those allegations were pursued in the Company's Submissions. They must therefore be treated as abandoned, being mere afterthoughts, either bare assertions devoid of evidential support or allegations raised belatedly in an attempt to justify the dismissal of the Claimant .

9 With respect to Paragraph 30 (20) of this instant Award, applying the principles in ***Mohd Azizi Sohan*** *[supra]*, ***Maritime Intelligence Sdn Bhd*** *[supra]* and ***BSC Manufacturing (M) Sdn Bhd*** *[supra]* , this Court could not deal into other reasons not relied on by the Company in terminating the Claimant.

10 In conclusion, scrutinizing the evidence and the testimonies of CLW1 and CLW2 as well as the testimonies of CoW1, CoW2 and CoW3, this Court is of the view that the Claimant's version are inherently probable than the Company's version .

[45] In the circumstances **,** this Court is satisfied that the Company had failed to established on a balance of probabilities its case of misconducts levelled against the Claimant.

WHETHER THE DISMISSAL IS PROPORTIONATE TO THE ALLEGED MISCONDUCT

[46] The Claimant submits that the dismissal was disproportionate to the seriousness of the allegation of misconducts. The Company , on the other hand states that the dismissal of the Claimant was appropriate with just cause and excuse.

[47] The Federal Court in ***Norizan bin Bakar v Panzana Enterprise Sdn Bhd*** *[2013] 6 MLJ 605* held that the Industrial Court is duty bound to consider proportionality of punishment when exercising its powers under section 30(5) of the Industrial Relations Act 1967 to act according to equity, good conscience and substantial merits of the case.

[48] The proportionality principle requires the Court to strike a balance between the severity of an employee's conduct and the sanction imposed.

[49] In passing a just and appropriate order, the Industrial Court is obliged to do a balancing exercise. It was held by the Court of Appeal in ***Tan Poh Thiam v Industrial Court of Malaysia and Daily Fresh Foods Sdn Bhd*** *(Civil Appeal J-01-414-12/2013)* that :

> *"[4] Industrial law jurisprudence does not permit any form of oppressive conduct on the part of an employer having the objective of dismissing the employee on "just cause or excuse" based on trivial allegations; based on matters that could have been dealt with*

appropriately with proper operating system or management system instead of taking drastic steps to dismiss the employee.

The Industrial Court in the Malaysian context is obliged to do a balancing exercise taking into account such factors as the nature of complaint the conduct of the employer, the operating and management system that is in place, the reason advanced by the employee as well as his conduct, and the gravity of the allegation; in order to ascertain whether the employee's act or omission qualifies as a misconduct to attract section 20 on Industrial Relations Act 1967 (IRA 1967). The proposition is fortified by section 30 of IRA 1967.

[50] This Court agrees that the decision to terminate the Claimant with immediate effect vide a letter dated 24.02.2022 was executed not in accordance with Clause 12 of the Letter of Appointment, which stipulates that, after confirmation of employment, either party may only terminate the contract with three (3) months' written notice or payment of three (3) months' salary in lieu. The Claimant was summarily dismissed without notice, salary in lieu, or payment of her contractual or statutory dues for February 2022.

[51] In the instant case , this Court is of the view that the punishment of dismissal was too harsh for the Claimant. The Company could have opted for other lesser forms of disciplinary action *inter alia* suspension without pay or demotion which would have been more appropriate.

[52] It is the opinion of this Court that even if the Claimant had committed the alleged misconducts, it does not warrants immediate dismissal. Instead, the Company was obliged to impose a punishment in order of its magnitude starting from the less punitive , *inter alia* : stern warning, suspension without pay, a demotion, and finally a dismissal.

[53] In passing a just and appropriate order, the Industrial Court is obliged to do a balancing exercise. It was held by the Court of Appeal in ***Tan Poh Thiam v Industrial Court of Malaysia and Daily Fresh Foods Sdn Bhd*** *(Civil Appeal J-01-414-12/2013)* that :

> *"[4] Industrial law jurisprudence does not permit any form of oppressive conduct on the part of an employer having the objective of dismissing the employee on "just cause or excuse" based on trivial allegations; based on matters that could have been dealt with appropriately with proper operating system or management system instead of taking drastic steps to dismiss the employee.*
>
> *The Industrial Court in the Malaysian context is obliged to do a balancing exercise taking into account such factors as the nature of complaint the conduct of the employer, the operating and management system that is in place, the reason advanced by the employee as well as his conduct, and the gravity of the allegation; in order to ascertain whether the employee's act or omission qualifies as a misconduct to attract section 20 on Industrial Relations Act 1967 (IRA 1967). The proposition is fortified by section 30 of IRA 1967.*

[54] In the present case, as mentioned earlier , this Court is satisfied on a balance of probabilities that the Company had failed to made out the case of misconduct against the Claimant . As such the termination of the Claimant is now rendered as null and void.

[55] In any event, this Court is convinced that the Claimant who served the Company for almost 2 years with clean disciplinary record could have been dealt with appropriately with proper management system. The Company could have opted for other lesser forms of punishment instead of taking drastic steps by terminating her service.

[56] In ***Goodyear Malaysia Bhd and National Union of Employees in Companies Manufacturing Rubber Products (*** *Award 88 of 1986)* it was held that ;

> *"It must be noted that not all misconduct deserves dismissal, which has been described as the capital punishment in industrial relations. Important circumstances, which mitigate the offence of the workman, should be taken into account by the employer before he can be said to have made a fair and reasonable decision to dismiss. For example, a workman's past record of good service, or the management's own actions or omission which contributed to the misconduct, are mitigating factors which any reasonable employer would take into account before dismissing Length and quality of service, good untainted record, and past service awards and recognition must also be taken as extenuating circumstances when an employer decides the appropriate punishment for the misconduct."*

[57] In addition, when carrying out the termination , the employer must ensure that the existing law, rules and procedures are adhered to. In this regard, it has been the practice of the Industrial Court to look at the **Code of Conduct for Industrial Harmony 1975** ("the Code") in determining the issue of fairness.

[58] Though the Code has no legal force and its acceptance is voluntary, it is still relevant for the purpose of considering the overall reasonableness of the employer's action.

[59] The Code is an agreement made and signed in Kuala Lumpur on 9 February 1975 between the Human Resources Ministry and the Malaysian Council of Employers' Organizations.

[60] The Code is aim to lay down principles and guidelines to employers and employees on the practice of industrial relations for achieving greater industrial harmony. Though the Code has no legal force and its acceptance is voluntary, it is still relevant for the purpose of considering the overall reasonableness of the employer's action.

[61] Clause 41 and 42 of the Code is a provision on Procedure for Disciplinary Action as follows :

" ***41***. *An employer should ensure that a fair, effective and expeditious procedure exists for dealing with disciplinary matters. Such procedure may be established in consultation with the employees representatives or trade union as appropriate. The employer should define and make known to each employee the rules of work and the disciplinary action which may follow if they are broken. Penalties should be graduated according to the seriousness of the offence. An employee should not, except in cases of gross misconduct, be dismissed for a first offence.*

42. *The disciplinary procedure should be in writing and be made known to each employee. The proceedings should be conducted in accordance with the rules of natural justice and should* "

a) provide for the employee to be informed, in writing, of the misconduct;

b) specify who has the authority to take what forms of disciplinary action;

c) provide for full and speedy consideration by the employer of all the relevant facts;

d) give the employee the opportunity to state his case and the right to be represented by his workers' representative or trade union official

e) in the case of less serious offences, provide, in the first instance, for a warning by the employee's immediate superior;

f) in the case of more serious offences, provide for a formal warning in writing, setting out the circumstances and the disciplinary action to which an employee will be liable if he commits a further offence, and require a copy if this record to be given to the employee and if he so wishes to his employees' representative or trade union official;

g) provide for a right of appeal against disciplinary action to a higher level of management not previously involved.

[62] The High Court in ***Credit Corporation (M) Bhd v Choo Kam Sing & Anor*** *[1998] 2 MELR 256* noted that although the Code has no legal force, it is nevertheless relevant factor to be looked at for the purpose of considering the overall reasonableness of the employer's action in dismissal cases.

[63] This means the court can take into account established guidelines and practices within industries, particularly in dismissal cases, when determining whether an employer's actions were fair. In fact, section 30(5A) of the Industrial Relations Act 1967 empowers the Industrial Court in making an award to take into consideration the requirements of the Code.

> ***section 30(5A) :***
> *"In making its award, the Court may take into consideration any agreement or code relating to employment practices between organisations representative of employers and workmen respectively where such agreement or code has been approved by the Minister."*

[64] Essentially, section 30(5A) provides a mechanism for the Industrial Court to incorporate industry-specific best practices and standards into its decision-making process, promoting fairness and consistency in industrial relations.

[65] In the instant case , the decision to terminate the Claimant with immediate effect was indeed, a hasty decision by the Company. This Court is of the view that the alleged misconduct does not warrants immediate dismissal. The Company could have opted for other lesser forms of disciplinary action which would have been more appropriate instead of taking drastic steps by terminating her services.

[66] In view of all the above and after taking into consideration the evidence adduced during the Trial, this Court is satisfied on a balance of probabilities that the termination of the Claimant was without just cause or excuse .

SALARY FOR FEBRUARY 2022 AND PAYMENT OF 10 DAYS ANNUAL LEAVE

[67] The Claimants prays that she be paid her salary for February 2022 and payment of 10 days unused annual leave .

[68] It was never disputed by the Company that the Claimant was never paid of her salary for February 2022 and payment of 10 days unused annual leave.

[69] In ***Nadarajah v Golf Resort (M) Bhd*** *[1992] 1 MLJ 506*, Eusoff Chin J (as he than was) says :

> *" It is therefore to be observed that in view of the provision of s. 30(5) of the Act , the Industrial Court must act according to equity, good conscience and substantial merits of the case without regard to technicalities and legal forms. Technical rules such as estoppel, limitation, laches, acquiescence, etc … have no place in industrial adjudication and they should not be allowed to be invoked for defeating claims which are just and proper "*

[70] In ***Tamil Nesan (M) Sdn. Bhd. v K. Ganesan*** *1 MELR 493; [1987] 2 ILR 147 [unreported]*, Mohd. Yusof J (as he then was) applied with approval the following passage appearing at page 1591 in the second volume of the **Law of Industrial Disputes by Malhorta , 4th edition**, a leading treatise on the subject :

> ***Estoppel and waiver***
>
> *The technicalities of the procedural law i.e Code of Civil Procedure or the Evidence Act do not apply to industrial adjudication. But*

fundamental principles of procedural law, cannot be given go-by whether called the rules of natural justice or by any other name. For instance, even if some workmen accept certain amount 'in full and final settlement of their account', they cannot be estopped from further claiming their legitimate dues nor can there be waiver in this respect of the rights accruing to them under the industrial law. The principle of estoppel or waiver cannot be rigorously applied against the workmen especially when it is not clear that they accept compensation given by the management in full satisfaction of their claim after having been made aware that they were entitled to higher compensation.

[71] The propositions established in ***Nadarajah*** (supra) and ***Tamil Nesan*** (supra) was quoted with approval by the Supreme Court in ***Kumpulan Perangsang Selangor Bhd v Zaid Hj. Mohd Noh*** *[1997] 2 CLJ 11* .

[72] Applying the abovementioned principles in ***Nadarajah*** (supra) and ***Tamil Nesan*** (supra), this Court is satisfied that it is just and appropriate that the Claimant be paid of the salary for February 2022 as well as for the 10 days unused annual leave. It caused no prejudiced to the Company as it is in line with the terms of the Claimant's employment.

I. CONCLUSION

[73] Pursuant to section 30(5) of the IRA1967 and after having considered the totality of the evidence adduced, this Court is satisfied that the Company had failed on a balance of probabilities to prove its case of

misconduct against the Claimant . Hence, this Court finds that the Company had failed to prove on the balance of probabilities that the dismissal of the Claimant from her employment with the Company was with just cause or excuse.

[74] As mentioned earlier, the Claimant was terminated as General Manager with immediate effect for alleged "serious misconduct and negligence". However the Termination Letter dated 24.02.2025 did not particularise or provide details of the alleged misconduct or negligence.

[75] The Claimant was also not given sufficient opportunity to explain and to defend herself. The Claimant was also not given the right to mitigate as well as right to appeal against the decision of the Company. Hence, this Court is satisfied that there was an issue of lack of procedural fairness as the Company had failed to adopt a reasonable procedure in dismissing the Claimant.

[76] This Court is convinced that this is a case of unlawful dismissal against the Claimant and that the termination of the Claimant was carried out not in accordance with fair labour practice and without just cause or excuse.

[77] Based on the Court's assessment of the industrial climate between the parties, it is certainly not conducive to reinstate the Claimant as the relationship between the Company and the Claimant has been badly strained. In the circumstances, it is inappropriate to order for reinstatement.

[78] Instead, this Court having ruled that the Claimant was dismissed without just cause or excuse, will now consider the appropriate remedy for the Claimant.

[79] In respect of the quantum the Court is mindful of the view taken by Tun Salleh Abas FJ in the case of ***Hotel Jaya Puri Bhd. V National Union of Hotel, Bar & Restaurant Workers & Anor*** *[1990] 1 MLJ 109* ***:***

> *".. if there is a legal basis for paying the compensation, the amount of course is very much a matter of the discretion which the Industrial Court is fully empowered under s.30 of the IRA 1967 to fix."*

Back Wages

[80] Back wages is calculated based on the Claimant's last drawn salary but limited to 24 months. From the back wages, the court is required to make a deduction for any contributory conduct, post dismissal earnings and delay in the hearing of the case but such a deduction need not involve a mathematical calculation.

[81] This Court is bound by the principle laid down in the case of ***Dr. James Alfred (Sabah) v. Koperasi Serbaguna Sanya Bhd (Sabah) & Anor*** *[2001] 3 CLJ 541*.His Lordship Justice Tan Sri Steve Shim CJ (Sabah & Sarawak) in delivering the judgement of the Federal Court held that:

> *In our view, it is in line with equity and good conscience that the Industrial Court, in assessing quantum of back wages, should take into account the fact, if established by evidence or admitted, that the*

workman has been gainfully employed elsewhere after his dismissal. Failure to do so constitutes a jurisdictional error of law. Certiorari will therefore lie to rectify it. Of course, taking into account such employment after dismissal does not necessarily mean that the Industrial Court has to conduct a mathematical exercise in deduction. What is important is that the Industrial Court, in the exercise of its discretion in assessing the quantum of back wages, should take into account all relevant matters including the fact, where it exists, that the workman has been gainfully employed elsewhere after his dismissal. This discretion is in the nature of a decision-making process.

Contributory Factor

[82] This Court have carefully examined the facts and evidence in this case and of the view that there was no contributory factor on the part of the Claimant. As such, there is no deduction under this item.

Delay

[83] From an examination of the notes of proceedings, this Court is satisfied that the Claimant did not occasion any delay in connection with the hearing of this ministerial reference. Therefore, there is no deduction under this head.

Gainful Employment / Post-Dismissal Income

[84] At the time of dismissal, the Claimant last drawn salary was **RM 5,500.00** inclusive of monthly fixed allowances. On the facts of this case,

there is evidence of a post-dismissal income of RM2,500.00 per month from December 2022 to May 2023 after the Claimant was dismissed by the Company on 24.02.2022. Hence, a deduction of **10%** under this item is just and reasonable.

J. MONETARY AWARD

[85] After having considered the evidence adduced before this Court as well as the submission by both parties, the remedies are as follows:

i. Compensation in lieu of reinstatement , based on the formula of one month salary for every completed year of service . There is no dispute on the fact that the Claimant has completed **1** full year of service calculated from 19.09.2020 until the date of dismissal on 24.02.2022:

RM 5,500.00 x 1 = **RM 5,500.00**

ii. Back wages for 24 months based on the Claimant's last drawn salary with deduction of 10% for post-dismissal income:

RM 5,500.00 x 24 (RM 132,000.00 – 10%) = **RM 118,800.00**

iii. Salary for February 2022 = **RM 5,500.00**

iv. Payment of 10 days unused annual leave = **RM 1,833.30**

[86] The monetary award in a total sum of **RM 131,633,30,** less statutory deductions, if any, shall be paid by the Company to the Claimant through Messrs. Chung & Lee Advocates on or before **16.01.2026** with interest of **8%** per annum to be calculated from **17.01.2026** until full and final settlement.

[87] Last but not least , it is pertinent to note the following passage taken from ***Kuching Plywood Bhd v Ngu Tiong Hie @ Ngu Tiong Hea*** *(Award No 172 / 1994)* which make reference to the Supreme Court of India judgment in the case of ***Delhi Transport Corporation. v D.T.C. Mazdoor Congress & Ors*** *(1991)AIR 101* **:**

> "*The right to life includes a right to livelihood. The right to livelihood therefore cannot hang on to the fancies of individuals in authority. The employment is not a bounty from them nor can its survival be at their mercy. Income is the foundation of many fundamental rights and when work is the sole source of income, the right to work becomes as much fundamental. Fundamental rights can ill afford to be consigned to the limbo of undefined premises and uncertain applications. That will be a mockery of them."*

[88] This Court verily believe that this Award is just and appropriate in the light of the particular facts of the present case and guided by the principles of equity, good conscience and substantial merits of this case without regard to technicalities and legal forms.

HANDED DOWN AND DATED THIS 16th DAY OF DECEMBER 2025

-signed-

INDRA BIN HAJI AYUB

CHAIRMAN

INDUSTRIAL COURT MALAYSIA